CHAPTER 48 National Commission for SCs

The National Commission for Scheduled Castes (SCs) is a constitutional body in the sense that it is directly established by Article 338 of the Constitution. On the other hand, the other national commissions like the National Commission for Women (1992), the National Commission for Minorities (1993), the National Human Rights Commission (1993) and the National Commission for Protection of Child Rights (2007) are statutory bodies in the sense that they are established by acts of the Parliament.

EVOLUTION

Originally, Article 338 of the Constitution provided for the appointment of a Special Officer for Scheduled Castes (SCs) and Scheduled Tribes (STs) to investigate all matters relating to the constitutional safeguards for the SCs and STs and to report to the President on their working. He/she was designated as the Commissioner for SCs and STs and assigned the said duty.

In 1978, the Government (through a Resolution) set up a non-statutory multi-member Commission for SCs and STs; the Office of Commissioner for SCs and STs also continued to exist.

In 1987, the Government (through another Resolution) modified the functions of the Commission and renamed it as the National Commission for SCs and STs[1].

Later, the 65th Constitutional Amendment Act of 1990[2] provided for the establishment of a high level multi-member National Commission for SCs and STs in the place of a single Special Officer for SCs and STs. This constitutional body replaced the Commissioner for SCs and STs as well as the Commission set up under the Resolution of 1987.

Again, the 89th Constitutional Amendment Act of 2003[3] bifurcated the combined National Commission for SCs and STs into two separate bodies, namely, National Commission for Scheduled Castes (under Article 338) and National Commission for Scheduled Tribes (under Article 338-A).

The separate National Commission for SCs came into existence in 2004. It consists of a chairperson, a vice-chairperson and three other members. They are appointed by the President by warrant under his hand and seal. Their conditions of service and tenure of office are also determined by the President. Under the Rules[4] made by the President, they hold office for a term of three years. They are not eligible for appointment for more than two terms.

FUNCTIONS

The functions of the Commission are:

1. To investigate and monitor all matters relating to the constitutional and other legal safeguards for the SCs and to evaluate their working;

2. To inquire into specific complaints with respect to the deprivation of rights and safeguards of the SCs;

3. To participate and advise on the planning process of socio-economic development of the SCs and to evaluate the progress of their development under the Union or a state;